

Form No:HCJD/C-121

ORDER SHEET

**IN THE LAHORE HIGH COURT,
BAHAWALPUR BENCH, BAHAWALPUR**

JUDICIAL DEPARTMENT

Case No. R.F.A. No.58 of 2025/BWP

Abdul Salam

Versus

H.B.F.C., Limited

S.No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
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05.06.2025

Mirza Muhammad Nadeem Asif, Advocate for the applicant/appellant.

Rai Mazhar Hussain Kharal and Mr. Jamshed Iqbal Khakwani,
Assistant Advocates General, Punjab.

Mr. Imtiaz Ali Khan, Deputy Registrar Judicial, Lahore High Court, Bahawalpur Bench, Bahawalpur (On Court's call).

Objection/Diary No.14391 of 2025

The applicant, who is appellant in the titled Regular First Appeal ('RFA'), seeks direction to the Office of this Court for issuance of certified copy of order dated 21.04.2025 passed by this Court in the titled RFA, whereby the operation of impugned judgment and decree dated 14.02.2025 passed by the Banking Court No. II, Bahawalpur had been suspended.

2. The Office has raised objection that the instant application under section 151 CPC alongwith all enabling provisions of law is not entertainable for the reason that in compliance of the afore-referred order passed by this Court, the appellant has not deposited the requisite amount. As the said objection relates to the maintainability of the instant application, it requires to be addressed on judicial side, hence the same is **over-ruled** for the time being to consider the said objection on its own merits in accordance with law. In view thereof, Office is directed to number this application and list out the same for hearing today.

C.M No. 3562 of 2025

3. Learned counsel for applicant/appellant submits that interim relief was granted to applicant/appellant vide order dated 21.04.2025 passed on C.M.No. 01 of 2025, whereby operation of the impugned judgment and decree dated 14.02.2025 passed by

Banking Court No.II, Bahawalpur was suspended subject to deposit of 50% of the decretal amount and submission of surety bond with regard to the remaining amount with the Deputy Registrar (Judicial) of this Bench within 60-days. It is claimed that despite submission of petition for obtaining certified copies, copy of the said order is not being issued by the Office of this Court to the applicant/appellant without any justification whereas due to non-provision of the certified copy, the learned Executing Court is proceeding further with the execution of the impugned decree suspended by this Court through the afore-referred order. In view of the foregoing, seeks direction to the Office of this Court to issue certified copy of the aforesaid order without requiring submission of 50% decretal amount and surety to the extent of remaining amount in terms of the same order. For clarity, the operative portion of order dated 21.04.2025 is reproduced below:

“Notice. Subject to deposit of 50% of the decretal amount and submission of surety bond with regard to the remaining amount with the Deputy Registrar (Judicial) of this Bench within 60 days from today, operation of the impugned judgment and decree shall remain suspended in the meanwhile. It is made clear that if the petitioner fails to comply with the said conditional order in letter and spirit within the stipulated period this injunctive order shall cease to exist automatically without any further order of this Court.”

4. The Deputy Registrar (Judl.) of this Bench, who was called upon to explain the afore-referred objection relating to maintainability of this application and the official position regarding issuance of certified copy of the afore-referred order passed by this Court, although has not pointed out any express bar against issuance of certified copy of the afore-referred order passed by this Court, however, states that as the order granting interim relief passed by this Court was conditional, which has not yet been complied with, therefore, there is an apprehension that the copy of said order, if issued at this stage without compliance of condition mentioned therein, may be misused as the authority or person before whom the same is to be presented would not have any intimation that the condition mentioned therein has not yet been complied with and further states that as per previous practice, certified copies of such orders are not issued unless the

condition(s) imposed by the Court in such conditional order(s) is/are complied with. Further for reference and comparison, he draws attention to bail granting orders passed by this Court wherein the accused is released on bail subject to deposit of bail bonds to be submitted before the Deputy Registrar (Judicial) of this Court, to state that certified copies of such orders are not issued unless condition of deposit of surety bonds is complied with for the reason that without submission of surety bonds, bail granting order would not become operative.

5. In order to appreciate aforesaid aspect of the matter, it is important to note here that Article 87 of the Qanun-e-Shahadat Order, 1984 (**‘QSO’**) authorizes the officer having custody of a public document to issue certified copy of the same and under Article 88 QSO such certified copies may be produced in proof of the contents of the public documents or parts of the public documents of which they purport to be copies; the said Articles are reproduced below:-

*“87. **Certified copies of public documents.** Every public officer having the custody of a public document, which any person has a right to inspect, shall give that person on demand a copy of it on payment of the legal fees therefor, together with a certificate written at the foot of such copy that it is a true copy of such document or part thereof, as the case may be, and such certificate shall be dated and subscribed by such officer with his name and his official title, and shall be sealed, whenever such officer is authorized by law to make use of a seal, and such copies so certified shall be called certified copies.*

***Explanation.** Any officer, who, by the ordinary course of official duty, is authorized to deliver such copies, shall be deemed to have the custody of such documents within the meaning of this Article.*

*88. **Proof of documents by production of certified Copies.** Such certified copies may be produced in proof of the contents of the public documents or parts of the public documents of which they purport to be copies.”*

6. It is pertinent to note here that Article 90 of QSO reproduced below, expressly raises presumption of law as to the genuineness of certified copies.

*“90. **Presumption as to the genuineness of certified copies.** (1) The Court shall presume every document purporting to be a certificate, certified copy or other document, which is by law declared to be admissible as*

evidence of any particular fact which purports to be duly certified by any officer of the Federal Government or a Provincial Government to be genuine.

Provided that such document is substantially in the form and purports to be executed in the manner directed by law in that behalf.

(2)The Court shall also presume that any officer by whom any such document purports to be signed or certified, held, when he signed it, the official character which he claims in such document.”

7. Certified copies of order(s) passed by this Court are issued under the powers vested in the Office of this Court vide Rules and Orders of the Lahore High Court, Lahore Volume V, Chapter 5, Part A (“**the Rules**”), which relate to inspection of records and Copy Branch Rules relating to issuance of certified copies of orders passed by this Court, whereas the Part B of said Chapter relates to grant of copies and translation of records. The certified copies issued under said Rules unless rebutted through evidence, have presumption of law relating to authenticity attached to the same.

8. Briefly stated the procedure for obtaining certified copies of orders passed by this Court in pending and decided cases is that the petitions for supply of copies (‘petition’ or ‘petitions’) are received at the Counter of the Copy Branch of this Court and the Copy Clerk checks the correctness of the details of petition and of the deposit (i.e. requisite fee, etc.) and after due process including making entry in the register, obtains orders from the Supervisor of said Branch as to whether or not copy of order should be supplied. After obtaining orders for supply of copy from the Supervisor, the Copy Clerk hands over the petition to the Miscellaneous Clerk for necessary action relating to decided or pending cases, who further processes the same in terms of the Rules and after making necessary entries in register passes it on to the Examiner of Copy Supply Section, who processes the same as per Rules and after entering the copies in the cost register, and putting the prescribed seal along with the particulars given in Appendix ‘J’ of the Copy Branch Rules thereon, delivers the same to the Copy Clerk while obtaining latter’s signature on the register. The Copy Clerk then passes the same on to the Supervisor of Copy Section after completing the accounts. After making necessary checks, the Supervisor Copy Section delivers the copy to the

petitioner/applicant through Copy Clerk. On the other hand, in terms of Rule 23 of the Rules if the petitions are found to be either incompetent or defective, an “Objection Statement” showing details given in Appendix ‘G’ attached to Copy Branch Rules concerning such petitions will be pasted on the notice board.

9. Although the office can refuse to issue certified copy of the order if the petition for the supply of the same is found to be incompetent or defective, yet it is not the claim of the Office that the same was incompetent or defective or that no such order, copy of which was required, had been passed by this Court on the said date, rather in the present case, the stance taken by the Office is that as the order passed by this Court was conditional, the same does not become operative unless the condition mentioned therein is complied with, therefore, it is claimed that certified copy of the same cannot be issued, as the same may be misused, which is stated to be based on previous practice of the Office of this Court, for which purpose as already noted above reference has been made to bail granting orders passed by this Court requiring submission of surety bonds to the satisfaction of Deputy Registrar (Judicial) of this Court, which according to the official position only becomes operative after surety bonds have been submitted and not prior to the same, hence copy of the same is not officially issued before submission of surety bonds.

10. Needless to mention that a Court could pass an order without any condition which becomes operative immediately or there could be different types of conditional orders passed by this Court, such as orders that become operative on the basis of some further development or performance of a condition precedent such as requiring submission of surety bonds or decretal amount to the satisfaction of the Deputy Registrar (Judicial) of this Court or the trial court or any other forum. Where the order was without any condition or same was made subject to submission of surety bonds or decretal amount subject to the satisfaction of the trial court or any other forum, unless the petition for provision of certified copy was found to be incompetent or defective, the office of this Court would not ordinarily refuse to issue certified copy of the said order to the petitioner for the reason that the such

copy is to be produced before the trial court or any other forum for further action/process by the said court or forum.

11. Another situation that could arise is that order was made operative with immediate effect subject to condition to be complied with subsequently. The order dated 21.04.2025 passed by this Court is one such order, wherein subject to deposit of 50% of the decreed amount and submission of surety bond with regard to the remaining amount with the Deputy Registrar (Judicial) of this Bench within 60 days from the day when order was passed on 21.04.2025, operation of impugned judgment and decree was suspended in the meanwhile i.e. with immediate effect from the date of passing of said order, with observation that if the petitioner fails to comply with the said conditional order in letter and spirit within the stipulated period, the injunctive order shall cease to exist automatically without any further order of this Court. The said order shows that although interim relief was granted with immediate effect yet the condition mentioned therein was to be fulfilled within next 60 days, failing which the order would no longer remain further operative. In this scenario, as the order had become operative with immediate effect, therefore, copy was required by the applicant to be produced before the trial/executing court for showing that in the interregnum period where time was provided to applicant to comply with the condition mentioned in the order passed by this Court, the interim relief, whereby the impugned judgment and decree had been suspended, was operative and applicable. The Court in its order had not mentioned that the order would not be operative unless the condition mentioned therein had been complied with or that the same would become operative after fulfillment of the said condition. In this view of the matter, the interpretation of the office that the order had not yet become operative or would not become operative unless condition mentioned therein had been complied with, was without any substance. Hence, there was no justifiable reason to refuse issuance of certified copy of the said order.

12. It is a settled proposition of law that every order passed by an authority has to be reasonable and the Court can interfere and set aside an order on the ground of unreasonableness if it is

flawed. Reference may be made to case titled “Associated Provincial Picture Houses Ltd. versus Wednesbury Corporation” {(1948) 1 KB 223} wherein it is provided that the “test of unreasonableness” in administrative law, also known as the Wednesbury unreasonableness test, is a standard used to assess whether a public authority’s decision is so flawed that it can be struck down by a court during judicial review. It essentially asks if the decision is so unreasonable that no reasonable person or body could have made it. This test is a high bar, requiring a decision to be not just flawed but egregiously irrational. Furthermore, the Supreme Court of Pakistan in case titled Dr. Akhtar Hassan Khan and others versus Federation of Pakistan and others (2012 SCMR 455) has observed that grounds upon which an administrative action is subject to control by judicial review, include (i) illegality, which means the decision-maker must understand the law correctly that regulates his decision-making power and must give effect to it, (ii) irrationality, namely, Wednesbury unreasonableness and (iii) procedural impropriety.

13. In the present case, the order passed by this Court became operative from the date the same was passed and the condition mentioned therein to deposit the decretal amount and the surety bond did not restrain the operation of the said order within time frame of sixty days provided in the same. If the certified copy is not issued, the trial/executing court would not be sure whether the assertion of the applicant relating to interim relief granted by this Court is correct or not and may proceed with the execution of orders pending before it to the detriment of the applicant, during the grace period of 60 days despite the fact that there is an operative stay order relating to suspension of decree in favour of the applicant even prior to deposit of surety bond and remaining decretal amount. Besides, there is no restraining order of this Court or higher forum presently available on the record against issuance of said certified copies and no bar against issuance of the same under the law or Rules of this Court has been pointed out, hence the refusal to issue the certified copy by the Office does not appear to be rational or justified in the given circumstance of the case, therefore, this application is declared to be maintainable and proceedable in accordance with law.

14. As regards the apprehension of the office, that the order may be misused or that this Court has also observed that in case of non-compliance of condition within stipulated time of 60 days, the order shall cease to be operative, needless to mention that the order was to become inoperative after 60 days in case the condition mentioned therein was not complied with and not prior to the same, hence in the meanwhile when the order is operative in its own terms, the Office cannot treat the same as inoperative and decline to issue its certified copy, however, as of abundant caution, the Office while issuing certified copy, if so deemed necessary to ensure that the issuance of certified copy may not be misinterpreted, can give a note/endorsement on the certified copy of the order that the condition mentioned therein has not yet been complied with.

15. In view of the above, the instant application is allowed and the Deputy Registrar (Judl.) is directed to issue certified copy of the said conditional order passed by this Court on 21.04.2025 and if deemed necessary, with endorsement on the same that till the date of issuance of certified copy of the order, the condition mentioned therein has not been complied with. C.M. stands disposed of.

(Malik Muhammad Awais Khalid)
Judge

(Muzamil Akhtar Shabir)
Judge

Yasin*

Approved for reporting.